CORAM: HER HONOUR HALIMAH EL-ALAWA ABDUL BAASIT (MRS), JUDGE, SITTING AT THE CIRCUIT COURT, DANSOMAN-ACCRA ON THE 29TH DAY OF APRIL, 2025.

SUIT NO: CCD/C4/33/24

LETICIA KYEREWAA - PETITIONER
SUING PER HER LAWFUL ATTORNEY
VIVIAN TEIKO TETTEH

VRS

ABRAHAM ANIM - RESPONDENT

Plaintiff absent; Lawful Attorney present
No Legal Representation for both parties

JUDGMENT

Background

1. The Petitioner filed a Petition at the Registry of this Court wherein she averred that the parties got married at the Accra Metropolitan Assembly on 28th day of July 2015. The parties cohabited in Accra before relocating to Palermo-Italy and the marriage has produced a Four (4) year old child. Petitioner averred further that whilst in Italy, the Respondent showed her little or no love, affection, exhibited cruelty, threatened and at times assaults the Petitioner without cause, and does not maintain the only child of the marriage. Petitioner again averred that the

Respondent has arranged to marry another woman in Ghana on the blind side of Petitioner and all attempts by the Petitioner and her family members as well as all well-wishers to resolve their issues have been unsuccessful.

2. Consequently, on the 31/05/2023 the Petitioner and her family returned the dowry to the Respondent's family with the consent of the Respondent signifying customary dissolution of the said marriage. The Petitioner concluded here averments by stating categorically that the marriage has broken down irretrievably as the Respondent has acted and keeps acting unreasonably. She particularized the Respondent's unreasonableness and breakdown of the marriage to include instances stated above and added that communication between the parties stopped as well as sexual intercourse. She therefore prayed the Court to legally dissolve the marriage.

3. It must be stated that the Respondent failed to enter Appearance to the Petition of which the Court ordered for all other Court processes including Court Notes to be served on the Respondent through Substituted Service. The Respondent, however, failed to respond to any of the said Court processes neither did he appear in Court personally on any of the Court's dates. The Court accordingly proceeded to hear the case of Petitioner since the Respondent, after being duly served, failed to appear before the Court to exercise the rights available to him as part of the civil practice in our Courts.

Issues and Analysis

4. In view of the above, the main issue for determination is **whether or not the marriage has broken down beyond reconciliation**. In Ghana, dissolution of marriages is regulated by the **Matrimonial Causes Act**, 1971 (Act 367) and the

combined effect of Sections 1(2) and 2(1) is that a person who petitions the Court for dissolution of marriage must prove that the marriage has broken down beyond reconciliation. In proving that the marriage has broken down beyond reconciliation, the Petitioner must establish at least one of the following; Adultery by the other party, Unreasonable behaviour, Desertion for a continuous period of at least two years, Separation for at least Two (2) years, Separation for at least 5 years, and irreconcilable differences. Petitioner therefore has to satisfy the Court of one or more of the grounds under section 2(1) of Act 367 as proof that the marriage has broken down beyond reconciliation.

5. To make a determination on whether or not the Marriage has broken down beyond reconciliation, the Court has to satisfy itself that the grounds for dissolution canvassed by the Petitioner falls within Section 2 of Act 367. In view of the Respondent's failure to respond to the Petition, the Court shall rely solely on the testimony of Petitioner's Lawful Attorney. This is because the Respondent failed to file any such Witness Statement despite being served with the Court Notes ordering him to do so. In the case of **Ankumah vs. City Waste Engineering** (2007-2008) SC GLR 1064, the Court held that *"a court is entitled to give judgment in default, as in the instant case, if a party fails to appear after notice of the proceedings has been given to him. For then it would be justifiable to assume that he does not wish to be heard"*.

6. As such, to succeed in a Petition for divorce, a Petitioner is required to plead and prove one of the facts set out in Section 2(1) of Act 367. In the case of **Donkor vs. Donkor** [1982-1983] GLR 1158, the High Court, Accra, per **Osei-Hwere J,** held that: *"The Matrimonial Causes Act, 1971 (Act 367), does not permit spouses married under the Marriage Ordinance… to come to court and pray for the dissolution of their marriage just for the asking. The petitioner must first satisfy the court of any one or more of those facts*

set out in section 2 (1) of the Act for the purpose of showing that the marriage has broken down beyond reconciliation. Section 2(3), which is pertinent, provides that even if the court finds the existence of one or more of those facts it shall not grant a petition for divorce unless it is satisfied that the marriage has broken down beyond reconciliation…'.

7. The Petitioner's Lawful Attorney filed a Witness Statement on behalf of the Petitioner wherein she testified that she attended the same Senior High School with the parties, where the Petitioner and Respondent started their relationship. The Lawful Attorney testified further that in 2015, the Petitioner solely financed their marriage and further succeeded in relocating the Respondent to Italy where they lived together as husband and wife. Yet, it is the Petitioner's case that her marriage to Respondent is the worst decision of her life. The Lawful Attorney testified that on numerous occasions, the Respondent exhibited cruel attitude, threats of harm and physical assault on petitioner. In one instance, Respondent locked Petitioner up in their washroom which had poor ventilation resulting in her first miscarriage.

8. Subsequently, Petitioner had Two (2) other miscarriages after the birth of their only child, as a result of the actions and inactions of Respondent including sexual, verbal and physical abuses, which often required the intervention of the Police or Social Workers. The Lawful Attorney testified further that the Respondent has not lived up to his responsibilities as a husband, failed to maintain both the Petitioner and the only child of the marriage but has gone ahead to arrange to marry another woman. This has resulted in the marriage being dissolved at custom but the Respondent would not desist from harassing and intimidating the Petitioner and her close allies, a matter which was later referred to the Police and Social Workers.

The Petitioner's Lawful Attorney concluded her testimony by praying for the marriage between the parties to be dissolved.

9. It is important to state again that the Respondent failed to file a Witness Statement and thereby failed to testify in Court. The implication therefore is that the entire testimony of the Petitioner remains unchallenged. Again, the Respondent failed to be in Court to cross-examine the Petitioner on all the allegations and averments made in the Petition. It is trite that the aim of cross-examination is to ask questions of a witness to assess the truth or veracity of his/her testimony as well as elicit facts or evidence which is likely to support a party's case. According to Justice Brobbey, **Essentials of the Ghana Law of Evidence,** 2014 at page 171, *'…if a witness testifies and the opponent consciously fails or refuses to cross-examine him, the Court may consider the evidence as admitted by the opponent…'* See also the case of **Quargraine v Adams** [1981] GLR 599.

10. In view of the above, the Petitioner's testimony remains unchallenged and it is thus clear from the evidence adduced by the Petitioner through her lawful attorney that due to irreconcilable differences, the marriage has indeed broken down beyond reconciliation. I find that the Respondent has behaved in a way that the Petitioner cannot reasonably be expected to live with the Respondent as provided in Sections 2(1) (b) of Act 367. I further find that the dissolution of the marriage at custom is evident that the parties have been unable to reconcile their differences in accordance with Section 2 (1) (f) of Act 367.

Conclusion

11. On the totality of evidence before this Court, I am satisfied that the marriage has indeed broken down beyond reconciliation. I hereby decree that the marriage

celebrated under the Marriage Ordinance (Cap 127) between the Petitioner and the Respondent on the 28th day of July 2015 be and is hereby dissolved this 29th day of April, 2025. The Marriage Certificate is accordingly cancelled. A copy of the Divorce Certificate is to be served on the Registrar of Marriages for the amendment of his records. There shall be no orders as to cost.

H/H HALIMAH EL-ALAWA ABDUL-BAASIT

CIRCUIT COURT JUDGE